

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

COMPLAINANTS' RESPONSE AND OPPOSITION
TO
RESPONDENT'S MOTION TO COMPEL COMPLIANCE WITH DISCOVERY
REQUESTS

Complainants Ports America Chesapeake, LLC ("PAC") and Marine Terminals Corporation-East ("MTCE") (each a "Complainant" and collectively "Complainants" or "Ports America") respectfully submit this response in opposition to Respondent's Motion to Compel Compliance with Discovery Requests ("Respondent's Motion to Compel") and respectfully request that the Presiding Officer deny Respondent's Motion to Compel.

COMPLAINANTS' BACKGROUND STATEMENT

On May 30, 2023, Complainants filed their verified complaint (the "Complaint") before the Federal Maritime Commission's ("FMC") alleging that AMPORTS has engaged in a pattern of conduct in violation of the Shipping Act of 1984, 46 U.S.C. § 40101, et. seq. (the "Shipping Act").

The Complaint alleges violations of 46 U.S.C. § 41106(2) (Unreasonable Preference, Prejudice or Disadvantage); 46 U.S.C. § 41102(c) (Unreasonable Practices); and 46 U.S.C. § 41106(3) (Unreasonable Refusal to Deal) in connection with AMPORTS' practice and policy of affording different and unequal treatment, and engaging in unreasonable conduct, with respect to automobile stevedores in the Port of Baltimore through its purported licensing of stevedores and its assessment of punitive access fees for unlicensed or non-preferred stevedores. Due to AMPORTS' actions, Complainants have incurred substantial damages.

On June 27, 2023, AMPORTS filed a motion to dismiss the Complaint ("Motion to Dismiss"). AMPORTS moved to dismiss Ports America's cause of action pursuant to 46 U.S.C. § 41106(2) (Unreasonable Preference, Prejudice or Disadvantage), *inter alia*, on the basis that Section 41106(2) allegedly requires a showing of (1) "relevant market" and (2) that AMPORTS' actions negatively "impact [] Complainants' ability to compete in that market." Motion to Dismiss at 5-6. On July 12, 2023, Ports America filed an opposition to AMPORTS' motion ("Opposition to MTD") and on July 19, 2023, AMPORTS filed a reply to Port America's Opposition to MTD ("Reply to MTD"). On August 16, 2023, the Presiding Officer denied AMPORTS' Motion to Dismiss on all grounds. Order Denying APS East Coast, Inc.'s Motion to Dismiss, Dkt. 23-04, No. 12. (ALJ Aug. 12, 2023) ("Order Denying MTD").

Complainants issued combined requests for production of documents and interrogatories, and Respondent issued requests for production of documents, interrogatories and requests for admission separately on each of the Complainants. Complainants and Respondent exchanged written responses to the respective discovery requests and exchanged document productions. In response to AMPORTS' discovery requests, Complainants produced 1,913 pages of documents, including corresponding metadata. In contrast, AMPORTS' productions consisted of 281 pages of documents without any metadata, compiled into a single pdf file, and two unlabeled video files.

The parties endeavored to resolve the discovery disputes and filed a Joint Supplemental Status Report and Joint Request for Modification of the Scheduling Order on December 8, 2023. On December 11, 2023, the Presiding Officer granted the parties request for a modification of the scheduling order and also set a discovery status conference for December 18, 2023. At the status conference, the parties discussed the principal discovery disputes and agreed to continue to address certain open items but did not reach agreement on other issues. The Presiding Officer directed each party to file a motion to compel discovery on December 27, 2023 regarding discovery issues remaining unresolved at that time. The parties filed respective motions to compel on December 27, 2023, including Respondent's Motion to Compel, to which Ports America opposes herein.

COMPLAINANTS' LEGAL STANDARD

The general scope of discovery is set forth in 46 C.F.R. § 502.141(e)(1): "Parties may obtain discovery regarding any nonprivileged matter that is *relevant* to any party's *claim or defense*.... Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence." (emphasis added).

The relevance standard in 46 C.F.R. § 502.141(e)(1) is incorporated into the permissible scope of each procedural means of discovery, *e.g.*: production of documents, "[i]n general. A party may serve on any other party a request within the scope of § 502.141(e) and (f)," 46 C.F.R. § 502.146(a); interrogatories, "[a]n interrogatory may relate to any matter that may be inquired into under § 502.141(e) and (f)," 46 C.F.R. § 502.145(a)(2); and requests for admission, "[a] party may serve on any other party a written request to admit, for the purposes of the pending action only, the truth of any nonprivileged *relevant matters* relating to facts, the application of law to fact, or opinions about either, and the genuineness of any described documents," 46 C.F.R. § 502.147(a)(1) (emphasis added).

Although discovery is broadly construed where the information sought appears reasonably calculated to lead to the discovery of admissible evidence, discovery is nevertheless limited to matters *relevant to a claim or defense*. *American President Lines, Ltd. v. Cyprus Mines Corp. and Cyprus Minerals Co.*, Docket No. 91-27, 26 S.R.R. 1227, 1234 (FMC Jan. 31, 1994) (“It is fundamental that the scope of discovery is not limitless and is restricted by the concepts of relevancy.”).

The requesting party has the initial burden to show relevance. “A party seeking discovery bears the initial burden of demonstrating the requested discovery is relevant to its claim or defense.” *Ocean Network Express Pte. Ltd. and Ocean Network Express (North America) Inc. - Possible Violations of 46 U.S.C. § 41102(c)*, Docket No. 21-17, 2022 WL 1485900, at *1–2 (ALJ May 4, 2022), *quoting Lakeview Pharm. of Racine, Inc. v. Catamaran Corp.*, 2017 U.S. Dist. LEXIS 163624, at *12 (M.D. Pa. Sep. 28, 2017) (citations omitted), and *citing Meijer, Inc. v. Warner Chilcott Holdings Co., III, Ltd.*, 245 F.R.D. 26, 30 (D.D.C. Sept. 21, 2007) (“Once a relevancy objection has been raised, the party seeking discovery must demonstrate that the information sought to be compelled is discoverable.”). If the requesting party sustains its initial burden of demonstrating relevance, then the burden shifts to the party resisting discovery to demonstrate that the requests are irrelevant, or are overly broad, burdensome, or oppressive. *See Ocean Network Express*, 2022 WL 1485900, at *1 (citations omitted).

The Commission Rules allow the presiding officer to “limit the frequency or extent of discovery otherwise allowed by these rules.” 46 C.F.R. § 502.141(e)(2). In addition to limiting discovery outside the scope of relevancy, the presiding officer may, in response to a motion or on its own, limit the frequency or extent of discovery otherwise allowed by the Commission’s rules if the presiding officer determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;

(B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii). The Commission's rules also permit the presiding officer to "issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j).

The Commission's rules permit a party to request a conference or rulings from the presiding officer on discovery disputes, 46 C.F.R. § 502.141(i)(2), and permit a party to file a motion seeking an order compelling discovery, 46 C.F.R. § 502.150(a). Pursuant to the June 21, 2023, Initial Order in this proceeding, a motion to compel "must set forth verbatim the interrogatory or request, the response that the moving party argues is insufficient, a summary of the moving party's attempts to secure a sufficient response, and the moving party's argument as to why the response is insufficient." Initial Order, Dkt. 23-04, No. 4 at 3, ¶ 12 ("Initial Order"). Further, the Initial Order instructs that "[t]he non-moving party must use the electronic copy of the motion to compel and add any counter-summary of the attempts to secure a sufficient response, then its argument on why the response is sufficient, below the moving party's summary and argument for each response claimed to be insufficient. The non-moving party must provide to the moving party and to the Presiding Officer an electronic copy in a word processing format of the motion to compel to which it has added its counter-summaries and arguments as well as filing the PDF version with the Secretary, with courtesy copies to opposing party and judges@fmc.gov." *Id.*

Pursuant to the instructions in the Initial Order, the body of Respondent’s Motion to Compel (headings II through VII) is set forth below, *verbatim*, in single-spaced text, with Complainants’ responses thereto following each request (and/or substantive section, as appropriate) with the heading “Complainants’ MTC Response”. As noted below, Respondent’s Motion to Compel does not conform to the format required in the Initial Order and for most requests Respondent does not present specific arguments explaining why individual requests are allegedly insufficient.

Respondent’s Motion to Compel, Complaints’ Counter-Summaries and Complainants’

Arguments on why the Response is Sufficient

II. BACKGROUND AND CERTIFICATION PURSUANT TO 46 C.F.R. §502.150(a)(2)(i)

The parties exchanged discovery requests on September 29, 2023, in accordance with the Scheduling Order (Doc. 16). The parties then mutually worked on a Confidentiality Stipulation which necessitated a delay in the exchange of discovery responses until November 10, 2023, when the parties were able to exchange the necessary responses.

With respect to the required certification under 46 C.F.R. §502.150(a)(2)(i), the undersigned attorney certifies that counsel for Respondent and counsel for Complainants met and conferred in good faith on December 6, 2023 between 10:00 am and 12:30 pm to discuss the discovery disputes between them and in an attempt to avoid the necessity of the subject Motion. However, disputes remain. The parties met again on December 18, 2023 before the Hon. Chintella for a discovery conference to see if the outstanding issues could be resolved. While some items were resolved, the parties’ positions with respect to several items, further outlined below, remained unchanged, necessitating the subject Motion to Compel Compliance with Discovery Requests.

Complainants’ MTC Response:

Complainants concur with Respondent’s certification pursuant to 46 C.F.R. §502.150(a)(2)(i), with the addition that on December 26, 2023, Respondent’s counsel provided a supplemental discovery response to certain open issues under discussion among counsel, which included (1) unredacted copies of a number of documents previously produced with redactions, and (2) designated that “all previously redacted pages are deemed “CONFIDENTIAL – OUTSIDE ATTORNEY EYES ONLY.” Respondent listed the unredacted pages with newly designated

CONFIDENTIAL – OUTSIDE ATTORNEY EYES ONLY information as follows:

- Board Presentation
 - APS 0039 through APS 0040
- Ceres December 2021 Proposal
 - APS 0048
- o APS Response to RFQ
 - APS 0065 through APS 0067
- Ceres March 2022 Proposal
 - APS 0070 through APS 0071
- Redhook Response to RFQ
 - APS 0074
- Correspondence with Ceres
 - APS 0086, 0088, 0090, 0091, 0093, 0094, 0097, 0098
- APS Agreement with Ceres
 - APS 0144 through APS 0157
- Hoegh Port Processing Agreement
 - APS 0273 through APS 0281

In light of the newly designated confidential information, certain aspects of this Opposition to Respondent's Motion to Compel would otherwise require confidentiality redactions and separate public and confidential filings, unless and until the propriety of the designations is addressed. However, in an effort to avoid unnecessary separate filings, this foregoing opposition has avoided the use of the previously redacted information.

III. MOTIONS TO COMPEL COMPLIANCE WITH DISCOVERY REQUESTS

Under the Federal Maritime Commission ("FMC") Rules, 46 CFR §502.150(a)(1), a party may bring a Motion to Compel Compliance with Discovery Requests if a corporation or other entity fails to make a designation of an individual who will testify on its behalf, a party fails to answer an interrogatory, a party fails to respond that inspection will be permitted, or fails to permit inspection, as requested under § 502.146. A failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response.

Complainants' MTC Response:

Respondent's general restatement of selected discovery standards is not associated with any specific request. In response, Complaints refer to the discussion of applicable law in Complainants' Legal Standard section, above.

IV. DUTY TO DISCLOSE; SCOPE OF DISCOVERY

With respect to the general scope of discovery and in accordance with 46 CFR § 502.141(e)(1), parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence.

Complainants' MTC Response:

Respondent's general restatement of selected discovery standards is not associated with any specific request. In response, Complaints refer to the discussion of applicable law in Complainants' Legal Standard section, above.

A. Interrogatories

With respect to Interrogatories, they may relate to any matter that may be inquired into under 46 C.F.R. §502.141(e) and (f)¹ and must, to the extent it is not objected to, be answered separately and fully in writing under oath.²

B. Request for Production

With respect to Requests for Production, a party may serve on any other party a request within the scope of § 502.141(e) and (f).³

C. Requests for Admissions

With respect to Requests for Admission, a party may serve on any other party a written request to admit, for the purposes of the pending action only, the truth of any nonprivileged relevant matters relating to facts, the application of law to fact, or opinions about either, and the genuineness of any described documents.⁴ If a matter is not admitted, the answer must specifically deny it or state in detail why the answering party cannot truthfully admit or deny it. A denial must fairly respond to the substance of the matter; and when good faith requires that a party qualify an answer or deny only a part of a matter, the answer must specify the part admitted and qualify or deny the rest. The answering party may assert lack of knowledge or information as a reason for failing to admit or deny only if the party states that it has made reasonable inquiry and that the information it knows or can readily obtain is insufficient to enable it to admit or deny.⁵ The requesting party may move for a determination of the sufficiency of an answer or objection. Unless the presiding officer finds an objection justified, the presiding officer must order that an answer be served. On finding

¹ 46 C.F.R. §502.145(a)(2)

² 46 C.F.R. §502.145(b)(3)

³ 46 C.F.R. §502.146(a)

⁴ 46 C.F.R. §502.147(a)(1)

⁵ 46 C.F.R. §502.147(a)(4)

that an answer does not comply with this rule, the presiding officer may order either that the matter is admitted or that an amended answer be served.⁶

Complainants' MTC Response:

Respondent's general restatement of selected discovery standards is not associated with any specific request. In response, Complaints refer to the discussion of applicable law in Complainants' Legal Standard section, above.

V. OBJECTION ON THE BASIS OF RELEVANCE, OUTSIDE THE SCOPE OF PERMISSIBLE AND/OR DISCOVERABLE SUBJECTS, AND/OR NOT CAPABLE OF AN INTERROGATORY RESPONSE

Complainants' responses to Respondent's discovery requests are wholly deficient. Every single response to Respondent's Interrogatories and Request for Production were objected to as being overbroad, with most requests also being objected to as being unduly burdensome to some degree. The overwhelming majority of responses to Respondent's Request for Admissions were objected to as being vague and not capable of answer. While Respondent's disagree with Complainants' counsel with respect to the necessity of those objections, the single biggest substantive issue Respondent require this Court to address is Complainants' objections on the basis of relevance, outside the scope of permissible and/or discoverable subjects, and/or not capable of an interrogatory response. It is Respondent's position that subject to those objections, Complainants' modified stock objections would not prevent them from answering. However, to the extent those objections would prevent Complainants from answering, we request Complainants identify the relevant request.

With regard to the subject objections, Respondent has grouped the subject matters into four categories: A) Complainants' Safety and Efficiency Records, B) the Relationship Between Ports America Chesapeake LLC and Marine Terminals Corporation-East, C) Details of PAC's and MTCE's Stevedoring Operations, and D) Efforts Undertaken by Complainants to Negotiate or Deal with Respondent. Respondent has identified the deficient responses and their arguments below.

Complainants' MTC Response:

Respondent's introductory statement is not clearly associated with any specific request. In response, Complainant notes that Respondent's Motion to Compel (1) challenges the scope and "necessity" of Complainants' specific objections, (2) argues that the "single biggest substantive issue" is Complainant's objections that certain requests and specific topics therein are not relevant to the discovery of admissible evidence on a claim or defense in this proceeding, and (3) requests

⁶ 46 C.F.R. §502.147(a)(6)

that “to the extent those objections would prevent Complainants from answering, we request Complainants identify the relevant request.”

Respondent also notes that it grouped the subject matters at issue “into four categories: A) Complainants’ Safety and Efficiency Records, B) the Relationship Between Ports America Chesapeake LLC and Marine Terminals Corporation-East, C) Details of PAC’s and MTCE’s Stevedoring Operations, and D) Efforts Undertaken by Complainants to Negotiate or Deal with Respondent” and that it “has identified the deficient responses and their arguments below.”

With respect to Respondent’s challenges to the “necessity” of Complainants’ objections—which Respondent characterizes as “modified stock objections”—the Commission’s Rules and Commission practice do not permit parties to rely on “general objections” and require objections to be made specifically in response to each objectionable request. *See* 46 C.F.R. §502.145(b)(4); 46 C.F.R. §502.146(b)(2); 46 C.F.R. §502.147(a)(5). Complainants’ responses and objections therefore do so specifically, with specific modifications made to the objections as applicable to each specific request, which Respondent at least implicitly recognizes. Further, where a request was objectionable only in part, Complainants’ responses and objections provided a partial response, endeavored to identify the objectionable portion(s), and responded to the portion(s) not considered objectionable.

As to the applicability of Respondent’s arguments on objections and relevance to specific requests, Complainants will respond to each specific request that Respondent’s move to compel as required by the rules and the Initial Order. However, while Respondent states that it “has identified the deficient responses and their arguments below,” Respondent’s Motion to Compel does not in fact provide specific arguments in support of the majority of the specific requests and responses, as noted below. Despite the deficient form of Respondent’s Motion to Compel, Complainants have endeavored to respond in substance to the allegedly deficient requests.

A. Complainants' Safety and Efficiency Records

Respondent APS East Coast, Inc. seeks information regarding Complainants' safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent's Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9.

[The above topics are relevant to the proceedings and do not exceed the scope of relevant and discoverable information. The Complaint states that Complainants were not treated equally and that such unequal treatment by Respondent was not justified by legitimate transportation factors. Complainants further state that safety and efficiency records cannot be meaningfully distinguished from Respondent's Preferred Stevedore (see Complaint ¶ 53 (a) & (b)). Respondent disputes this claim and the topic of Complainants' safety and efficiency is clearly linked with the reasonableness of Respondent's actions under Count I and II of the Complaint. Accordingly, as the parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and it appears that Complainants intend to assert their safety and efficiency records as part of their claim and Respondent intends to assert the subject of Complainants' safety and efficiency as part of their defense, the topic of Complainants' safety and efficiency records are clearly relevant as well as a permissible topics under 46 CFR § 502.141(e), §502.145(a)(2), and §502.146(a).]⁷

Complainants' MTC Response:

AMPORTS advances two related arguments in support of the purported relevance of Complainant's "Safety and Efficiency Records": (1) that Complainants' "safety and efficiency records" are allegedly relevant to AMPORTS' defense that consideration of such records constituted "legitimate transportation factors" justifying the unequal treatment of Complainants with regard to the Access Fee and related allegations of unreasonable and unequal treatment; and (2) that paragraph 53 of the Complaint alleges that "the unequal treatment is not justified by differences in legitimate transportation factors," such as the alleged "factors" referred to in paragraphs 53(a) and (b) of the Complaint. Neither of these arguments sustain AMPORTS' burden of showing relevancy in this proceeding of the safety and efficiency information sought. Moreover, the evidence produced in discovery further confirms that the information is legally irrelevant.

This initial issue for the purposes of relevance of "safety and efficiency" factors here is

⁷ This general safety argument section appears on page 8 of Respondent's Motion to Compel, after the safety related-requests, but is reprinted here for clarity.

whether they even *were* factors employed by AMPORTS at the time, not whether such factors *could have been* employed or could have been *post hoc* legitimate transportation justifications for the unequal treatment. The evidence produced to date establishes that Complaints’ “safety and efficiency records” were simply not factors that AMPORTS employed in the “competitive bidding process” or otherwise.

None of the communications produced by AMPORTS refer to safety or efficiency as reasons, factors, or bases for decisions regarding the alleged “competitive bidding process” or establishment of the Access Fees. The Request for Proposals (“RFP”) itself makes no mention whatsoever to stevedore safety or efficiency considerations. APS 0056. Indeed, the only information requested by AMPORTS in the RFP was responding to an attached “bid template” requesting a proposed per car fee to be paid to AMPORTS for preferential access. The entirety of the short RFP is reprinted below:

“Dear valued partner:

AMPORTS would like to invite you to bid on the stevedoring services at our Atlantic and Chesapeake facilities in Baltimore, MD. AMPORTS is seeking a stevedoring partner for one or more terminal locations in Baltimore. This process once completed will allow for exclusive stevedoring operations on our terminal in one or more locations. We strongly suggest bidding on each location separately and also combined as you will find in the attached template.

All volumes in the bid document include 2021 actual and 2022 budgeted volumes. This bid does not include processing services and only includes ocean carrier loading and unloading services. AMPORTS is seeking a per unit fee to be paid to AMPORTS monthly for the exclusive agreement. AMPORTS does not seek to JV and will only be the Port Authority for this agreement.

Please return the completed document by COB 3/25/2022 to be considered for this opportunity. The timing of the award of service will be mid April 2022 and may be extended to allow for individual negotiations.

If you have any questions, please feel free to reach out at your convenience.
[sic]”

APS 0056. The attached bid template simply sought financial proposals for a per car fee to be paid to AMPORTS for terminal access over a ten year period.



Atlantic	
Year	Fee per unit USD
Year 1	
Year 2	
Year 3	
Year 4	
Year 5	
Year 6	
Year 7	
Year 8	
Year 9	
Year 10	

Year	Volume
2021	102,901
2022	124,313 Budgeted

Combined	
Year	Fee per unit USD
Year 1	
Year 2	
Year 3	
Year 4	
Year 5	
Year 6	
Year 7	
Year 8	
Year 9	
Year 10	

Year	Volume
2021	303,986
2022	310,570 Budgeted

Chesapeake	
Year	Fee per unit USD
Year 1	
Year 2	
Year 3	
Year 4	
Year 5	
Year 6	
Year 7	
Year 8	
Year 9	
Year 10	

Year	Volume
2021	201,085
2022	186,257 Budgeted

APS 0057

AMPORTS has conceded in discovery responses that the RFP was not sent to Ports America, even though AMPORTS sent the RFP to at least one stevedore without any stevedoring experience at the terminals (noting in its response to AMPORTS that “[a]s mentioned to you previously, [stevedore] has no experience operating at either the Atlantic or Chesapeake Amports facilities.”). APS 0065.

Not only does the record indicate that stevedoring safety and efficiency were *not* factors employed by AMPORTS, the record further indicates that Respondents did not request or have any significant safety or efficiency information from Complainants at the time upon which to have based any alleged factor or consideration. Despite Complainants having years of Ro/Ro operating history with AMPORTS in Baltimore, in response to a document request seeking “documents in AMPORTS’ possession, custody or control reflecting Complainants’ or Ports America “health and safety track records,” “the ability to ensure sufficient and consistent dockside labor,” and reflecting

Ro/Ro stevedoring performance and efficiency at AMPORTS Baltimore Terminals” (Request for Production No. 8), the *only* responsive information provided by AMPORTS were two short, unlabeled security camera videos appearing to show two minor incidents with cars.

Finally, the *post hoc* argument that Complainants’ “safety and efficiency” information was considered as a factor against consideration of Complainants in the “competitive bidding process” is directly contradicted by the representations made on behalf of AMPORTS in March 2023, mere months after the alleged selection process, that “[s]hould Ports America or MTCE be interested in bidding to be AMPORTS’ preferred stevedore provider in the future, *for which it appears they may be well suited*, AMPORTS will ensure that both entities are included in the next Request for Quote round.” Complaint ¶ 71, Answer ¶ 71 (“Admitted as to the quoted language”) (emphasis added).

It is Respondent’s burden to show the relevance of the information sought. While Respondent argues that the “safety and efficiency is clearly linked with the reasonableness of Respondent’s actions under Count I and II of the Complaint,” Respondent notably does not argue here that Complainants’ safety and efficiency information was a legitimate justification or why it would be relevant after the selection of the “preferred stevedore” when it was not relevant during the bidding process. While the information requested might have been relevant had it been requested in the alleged competitive bidding process, or if there was some penumbra of indication that the requested information was a factor considered in the RFP, the circumstances here show that it is irrelevant. If Respondent had used safety and efficiency information as a decision making factor in the “competitive bidding process”, it would have already had whatever information allegedly utilized in its possession.

With respect to Respondent’s reliance on Paragraphs 53(a) and (b) in the Complaint, they are derived from the factual allegations in Paragraphs 37 and 38 of the Complaint. Paragraphs 37 and 38 recount the content letter of the March 31, 2023 from counsel for AMPORTS to counsel for

Complainants purportedly identifying a number of “factors” and “considerations” that AMPORTS had allegedly employed in its alleged “competitive bidding process” in 2022 and in adopting the \$25 Access Fee at that time. In detailing the elements of the section 41106(3) cause of action in Count I, paragraph 53 alleges that those factors were *not* legitimate transportation factors justifying AMPORTS’ actions. A number of the purported factors and considerations asserted in that letter appear to have already been dropped, and the remaining *post hoc* rationalizations fail to satisfy Respondents’ burden to establish relevance for the same reasons discussed above.

It is AMPORTS’ burden to show legitimate transportation factors justifying unequal treatment, if it can. But unsubstantiated, and indeed disproven, theories of potential justifications and fishing for evidence to support *post hoc* rationalizations that were not a basis for the decision at the time fails to establish relevance.

A. Complainant’s Safety and Efficiency Records

Respondent APS East Coast, Inc. seeks information regarding Complainants’ safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent’s Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9.

Complainants’ MTC Response:

Respondent’s general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Interrogatory No. 1: *“Describe in detail Complainant’s safety training program and vessel familiarization for its stevedores and identify all written safety policies and procedures, including stevedore training procedures, auditing procedures, records, and reports; and any third-party review, auditing, or certifications of such safety training program, if any, and identify the persons responsible for such program.”*

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No. 1 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s interrogatory with respect to Complainant’s “safety training and vessel familiarization for its stevedores” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent APS East Coast, Inc. seeks information regarding Complainants’ safety training program and vessel familiarization*

programs as well as any written policies and procedures for such a training program. This information was sought in Respondent's Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9."

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. The information requested could have been relevant had it been requested during the alleged competitive bidding process, however if Respondent had requested the information and/or used the information during the "competitive bidding process", it would already have all relevant safety training information and efficiency metrics in its possession. Given Respondent only produced two short videos in response to Complainants' discovery request and provided no other safety information, the logical conclusion is Respondent is not in possession of any materially-relevant information. If Respondent is not in possession of such information, receiving new information now is not relevant to any decision making that took place in 2022. Additionally, Respondent's production in response to Complainants' discovery request shows Respondent did not request any safety training program or vessel familiarization records from any of the stevedores it engaged in the "competitive bidding process." (APS 0042-0049, 0051- 0100, and 0144-0157.) The information is not relevant to the current proceeding.

Request for Production No. 1: *"Provide all Documents related to Complainant's safety training program and vessel familiarization, including all written safety policies and procedures, and any Documents referenced or relied upon to answer Respondent's Interrogatory No. 1."*

[Complainants'] RESPONSE: *"Complainant objects to Request No. 1 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's Request with respect to Complainant's "safety training program and vessel familiarization" is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a)."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent APS East Coast, Inc. seeks information regarding Complainants' safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent's Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1.

Request for Production No. 8: *“Provide all Documents concerning the safety records of Complainant’s stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.”*

[Complainants'] RESPONSE: *“Complainant objects to Request No. 8 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “safety records of Complainant’s stevedore operations in the Port of Baltimore” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent APS East Coast, Inc. seeks information regarding Complainants’ safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent’s Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9.”*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1.

Request For Production No. 9: *“Provide all Documents concerning the efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.”*

[Complainants'] RESPONSE: *“Complainant objects to Request No. 9 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent APS East Coast, Inc. seeks information regarding Complainants’ safety training program and vessel familiarization programs as well as any written policies and procedures for such a training program. This information was sought in Respondent’s Interrogatory No. 1, and Request for Production Nos. 1, 8, & 9.”*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1.

AMPORTS MTC ARGUMENT: Respondent sought information regarding stevedoring accidents, Complainants' accident reporting systems, along with identifying any persons that would have knowledge of Complainants' stevedoring accidents or accident reporting system including injured persons. Respondent sought this information through Interrogatories Nos. 3 & 4, and Request for Production No. 2.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Interrogatory No. 3: *"Identify all persons and entities that Complainant is aware have, or are likely to have, personal knowledge regarding Complainant's stevedoring accident reports or accident reporting system, including injured persons, managers, witnesses, and forepersons, and state the subject matter of the personal knowledge possessed, or likely to be possessed, by each such person or entity."*

[Complainants'] RESPONSE: *"Complainant objects to Interrogatory No. 3 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to "stevedoring accident reports or accident reporting system" is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2)."*

AMPORTS MTC ARGUMENT: *[no specific argument provided]* *"Respondent sought information regarding stevedoring accidents, Complainants' accident reporting systems, along with identifying any persons that would have knowledge of Complainants' stevedoring accidents or accident reporting system including injured persons. Respondent sought this information through Interrogatories Nos. 3 & 4, and Request for Production No. 2."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1.

Interrogatory No. 4: *“Identify all actual or reported accidents or incidents resulting in damage or loss of property or personal injury or death or the imminent risk of such consequences (each, an “incident”) involving in any way any Ports America Affiliate or employees of any of Ports America Affiliate in the Port of Baltimore between September 29, 2018 and September 29, 2023, stating with regard to each such incident: (1) the specific Ports America Affiliate(s) involved, (2) the date of such incident, (3) the nature of such incident, (4) the cause of such incident, (5) the extent of any injury, damage, or loss involved in such incident, (6) the terminal location or other location of each such incident, (7) if related to the loading or discharging of a vessel, the vessel involved in or related to such incident, and (8) if a report was prepared regarding such incident, the date and report number of such report.”*

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No. 4 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s interrogatory with respect to Complainant’s “accidents or incidents” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding stevedoring accidents, Complainants’ accident reporting systems, along with identifying any persons that would have knowledge of Complainants’ stevedoring accidents or accident reporting system including injured persons. Respondent sought this information through Interrogatories Nos. 3 & 4, and Request for Production No. 2.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1. Further, the information requested includes accidents and incidents through September 29, 2023 – a year after the “competitive bidding process” took place. Documents from 2023 cannot have any relevance to the reasonableness of Respondent’s actions in 2022.

Request for Production No. 2: *“Provide all Documents and Communications sent by or received by Complainant, including its agents, employees, and insurers regarding all actual or reported stevedore accidents or injuries between September 29, 2018 and September 29, 2023 in the Port of Baltimore, including without limitation all Documents and Communications referenced or relied upon to answer Respondent’s Interrogatory No. 4.”*

[Complainants’] RESPONSE: *“Complainant objects to Request No. 2 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “stevedore accidents or injuries” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding stevedoring accidents, Complainants’ accident reporting systems, along with identifying*

any persons that would have knowledge of Complainants' stevedoring accidents or accident reporting system including injured persons. Respondent sought this information through Interrogatories Nos. 3 & 4, and Request for Production No. 2."

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1. Further, the information requested includes accidents and incidents through September 29, 2023 – a year after the “competitive bidding process” took place. Documents from 2023 cannot have any relevance to the reasonableness of Respondent's actions in 2022.

AMPORTS MTC ARGUMENT: Respondent further requested information on the efficiency and productivity metrics used by Complainants to measure or advertise their services. Respondent sought this information through its Interrogatory No. 16 and Request for Production No. 9.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Interrogatory No. 16: *“Describe in detail all efficiency metrics Ports America uses to measure or advertise its stevedore operations at the Port of Baltimore.”*

[Complainants'] RESPONSE: *“Complainant objects to Interrogatory No. 16 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding with respect to the subject of “efficiency metrics” and to the extent that it seeks information from or as to entities other than Complainant. Respondent's interrogatory with respect to Complainant's “efficiency metrics” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent further requested information on the efficiency and productivity metrics used by Complainants to measure or advertise their services. Respondent sought this information through its Interrogatory No. 16 and Request for Production No. 9.”*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See

response to Interrogatory No. 1. Further, the information requested includes accidents and incidents through September 29, 2023 – a year after the “competitive bidding process” took place. Documents from 2023 cannot have any relevance to the reasonableness of Respondent’s actions in 2022.

Request for Production No. 9: *“Provide all Documents concerning the efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore between September 29, 2018 and September 29, 2023.”*

[Complainants’] RESPONSE: *“Complainant objects to Request No. 9 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s Request with respect to Complainant’s “efficiency and productivity of Complainant’s stevedore operations in the Port of Baltimore” is not relevant to this proceeding and exceeds the scope of permissible discovery pursuant to FMC Rules 141(e) and 146(a).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent further requested information on the efficiency and productivity metrics used by Complainants to measure or advertise their services. Respondent sought this information through its Interrogatory No. 16 and Request for Production No. 9.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. See response to Interrogatory No. 1. Further, the information requested includes accidents and incidents through September 29, 2023 – a year after the “competitive bidding process” took place. Documents from 2023 cannot have any relevance to the reasonableness of Respondent’s actions in 2022.

AMPORTS MTC ARGUMENT: The above topics are relevant to the proceedings and do not exceed the scope of relevant and discoverable information. The Complaint states that Complainants were not treated equally and that such unequal treatment by Respondent was not justified by legitimate transportation factors. Complainants further state that safety and efficiency records cannot be meaningfully distinguished from Respondent’s Preferred Stevedore (see Complaint ¶ 53 (a) & (b)). Respondent disputes this claim and the topic of Complainants’ safety and efficiency is clearly linked with the reasonableness of Respondent’s actions under Count I and II of the Complaint. Accordingly, as the parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense and it appears that Complainants intend to assert their safety and efficiency records as part of their claim and Respondent intends to assert the subject of Complainants’ safety and efficiency as part of their defense, the topic of Complainants’ safety and efficiency records are clearly relevant as well as a permissible topics under 46 CFR § 502.141(e),

§502.145(a)(2), and §502.146(a).]⁸

Complainants' MTC Response:

Complainants responded to this paragraph as reprinted above, and refers to that response, which is incorporated herein.

AMPORTS MTC ARGUMENT: Relatedly, Respondent requested that Complainants confirm that no safety or efficiency records had been sent to Respondent or Respondent's counsel. Respondent pursued this information through its Request for Admissions Nos. 6 & 7.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Request for Admission No. 6: *"Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant's safety records to Respondent or Respondent's counsel."*

[Complainants'] RESPONSE: *"Complainant objects to Request for Admission No. 6 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by "Complainant's safety records" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges."*

AMPORTS MTC ARGUMENT: *[no specific argument provided]* *"Relatedly, Respondent requested that Complainants confirm that no safety or efficiency records had been sent to Respondent or Respondent's counsel. Respondent pursued this information through its Request for Admissions Nos. 6 & 7."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. In

⁸ This general safety argument section appears on page 8 of the Respondent's Motion to Compel, after the safety related-requests, but is reprinted here for clarity.

addition, Complainants reiterate specifically the objection that the request for admission as vague and not capable of an admission or denial with respect to what is meant by “Complainant’s safety records” and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. To the extent that Respondent’s refer to sending “Complainant’s safety records” in response to the March 31, 2023 letter from counsel regarding a *future* consideration or future process that has not been initiated, and which upon information and belief does not currently exist, the request is admitted in that specific part, but denied in its generality. Complainant further notes that no *future* consideration or future process has ever occurred and, given the current proceeding relates to the November 2022 decision, any subsequent request for information is irrelevant.

Request for Admission No. 7: “Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant’s efficiency records or metrics to Respondent or Respondent’s counsel.”

[Complainants’] RESPONSE: “Complainant objects to Request for Admission No. 7 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by “Complainant’s efficiency records or metrics” and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Relatedly, Respondent requested that Complainants confirm that no safety or efficiency records had been sent to Respondent or Respondent’s counsel. Respondent pursued this information through its Request for Admissions Nos. 6 & 7.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. In addition, Complainants reiterate specifically the objection that the request for admission as vague and not capable of an admission or denial with respect to what is meant by “Complainant’s efficiency

records or metrics” and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. To the extent that Respondent’s refer to sending “Complainant’s efficiency records or metrics” in response to the March 31, 2023 letter from counsel regarding a *future* consideration or future process that has not been initiated, and which upon information and belief does not currently exist, the request is the request is admitted in that specific part, but denied in its generality. Complainant further notes that no future consideration or future process has ever occurred and, given the current proceeding relates to the November 2022 decision, any subsequent request for information is irrelevant.

AMPORTS MTC ARGUMENT: Complainants objected to these requests as outside the scope of permissible requests and therefore refused to admit or deny in response, despite the fact that such information is not privileged and relates to the factual interactions between the parties. These Requests for Admission go towards the establishing the facts as they relate to Count III of the Complaint, specifically with respect to Respondent’s defense that Complainants failed to pursue negotiations despite Respondent’s invitation to do so. Accordingly, such Requests are certainly relevant under §46 C.F.R. §502.147(a)(1), and capable of being admitted or denied by Complainants.

Complainants’ MTC Response:

Respondents’ general statement is not specifically associated with any requests, but is believed to relate to the two requests for admission above, Nos. 6 and 7. Complainants’ respond by reference to their responses to Nos. 6 and 7 above.

B. Relationship between Ports America Chesapeake LLC and Marine Terminals Corporation-East

Respondent sought information regarding the corporate relationship between PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought “all Documents” related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Request for Production No. 3: *"Provide all Documents, diagrams, and charts detailing the corporate relationship with respect to Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East including, without limitation, all Documents referenced or relied upon to answer Respondent's Interrogatory No. 5."*

[Complainants'] RESPONSE: *"Complainant objects to Request No. 3 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding, to the extent it seeks "all Documents" with respect to the subject matter of the request. Subject to and without waiver of the foregoing objections, Complainant responds that it will respond to Respondent's Interrogatory No. 5 sufficient to respond regarding the corporate relationship relevant to this proceeding and/or will responds that it will produce responsive, non-privileged information in its possession, custody, or control located after a reasonable search sufficient to show the "corporate relationships of Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent sought information regarding the corporate relationship between PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought "all Documents" related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5." And "[w]e note that Complainants did not object on the basis for relevance for Interrogatory No. 5, or Request for Admissions Nos. 10 & 11, which are copied below."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection regarding the overbroad scope of the request. Moreover, as set forth in the response above, Complainants responded to the document request, that it would respond to discovery "sufficient to respond regarding the corporate relationship relevant to this proceeding and/or will responds that it will produce responsive, non-privileged information in its possession, custody, or control located after a reasonable search sufficient to show the 'corporate relationships of Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East.'" Complainants did so in response to Interrogatory No. 5, below, that "(1) 'Ports America' is a trade name, not a corporate entity, (2) Ports America

Chesapeake, LLC, and Marine Terminals Corporation-East are separate legal entities, and (3) each entity is an indirect, wholly-owned subsidiary of Ports America Group, Inc.” Further, in light of Respondent’s clarification that the document request is limited “to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5,” Respondent does not have additional responsive documents.

Interrogatory No. 5: *“Describe in detail the corporate relationship between Ports America, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East and identify all facts, documents, organization charts, and witnesses confirming such relationships.”*

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No. 5 as overbroad, unduly burdensome, duplicative of discovery sought via Respondent’s Requests for Admission Nos. 10 and 11, and requesting information not capable of an interrogatory response by Complainant, to the extent it seeks the identification “all facts, documents, organization charts, and witnesses confirming such relationships and entities.” Subject to and without waiving any of the foregoing objections, Complainant responds that (1) “Ports America” is a trade name, not a corporate entity, (2) Ports America Chesapeake, LLC, and Marine Terminals Corporation-East are separate legal entities, and (3) each entity is an indirect, wholly-owned subsidiary of Ports America Group, Inc.”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding the corporate relationship between PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought “all Documents” related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5.” And “[w]e note that Complainants did not object on the basis for relevance for Interrogatory No. 5, or Request for Admissions Nos. 10 & 11, which are copied below.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection regarding the overbroad scope of the request. Moreover, as set forth in the response above, Complainants responded to the interrogatory that “(1) ‘Ports America’ is a trade name, not a corporate entity, (2) Ports America Chesapeake, LLC, and Marine Terminals Corporation-East are separate legal entities, and (3) each entity is an indirect, wholly-owned subsidiary of Ports America Group, Inc.”

While Respondent apparently seeks a more detailed understanding of the relationship between PAC and MTCE for the purported reason that it is “necessary to determine the alleged degree of unreasonable preference, prejudice, or disadvantage shown to PAC v. MTCE, the claimed loss for each party ... how any contractual relationships may have been effected ... and the effort put in by each party individually with respect to their alleged attempts to negotiate or deal with Respondent,” Respondent’s argument appears to be directed at proof of damages, not vague additional details of the corporate relationship of Complainants. As acknowledged in Respondent’s Motion to Compel, Respondent has received information regarding the corporate relationships. It is unclear what additional information Respondent is seeking regarding the relationship between PAC and MTCE and why it believes such information would be relevant or necessary.

Request for Admission No. 10: *“Admit that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate legal entities.”*

[Complainants’] RESPONSE: *“Admitted.”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding the corporate relationship between PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought “all Documents” related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5.” And “[w]e note that Complainants did not object on the basis for relevance for Interrogatory No. 5, or Request for Admissions Nos. 10 & 11, which are copied below.”*

Complainants’ MTC Response:

The request for admission was admitted.

Request for Admissions No. 11: *“Admit that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are encompassed under the Ports America brand.”*

[Complainants’] RESPONSE: *“Complainant objects to Request for Admission No. 11 as vague and ambiguous and not capable of an admission or denial with respect to what is meant by “encompassed under the Ports America brand.” To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds that Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate legal entities, with separate boards of directors. As set forth in responses to Interrogatory Nos. 5, 17 and 18, Ports America Chesapeake, LLC and*

Marine Terminal Corporation- East are both indirect, wholly owned subsidiaries of Ports America Group, Inc., but each of Ports America Chesapeake, LLC and Marine Terminal Corporation-East are separate corporate and commercial operations.”

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding the corporate relationship between PAC and MTCE and requested that information through its Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11. Complainants objected on the basis of relevance for Request for Admission No. 3 to the extent Respondent sought “all Documents” related to the subject matter of the relationship between PAC and MTCE. Respondent however only requested Documents to the extent that Complainant referenced or relied upon them to answer Interrogatory No. 5.” And “[w]e note that Complainants did not object on the basis for relevance for Interrogatory No. 5, or Request for Admissions Nos. 10 & 11, which are copied below.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objections to Request for Admission No. 11 as vague and ambiguous and not capable of an admission or denial with respect to what is meant by “encompassed under the Ports America brand.” Moreover, Complainants sought to respond meaningfully despite the ambiguity. To the extent that Respondent’s are objecting to the effort to provide a responsive answer, but instead seeking an “admission” or “denial”, the Request for Admission is Denied.

AMPORTS MTC ARGUMENT: Respondent disputes that contention that Interrogatory No. 5 is duplicative of Requests for Admissions Nos. 10 & 11, and take issue with Complainants’ answers above as being nonresponsive for refusing to detail the relationship between PAC and MTCE. While Respondent appreciates that both Complainants are separate entities that are wholly-owned by Ports America Group Inc., at no time do Complainants detail the relationship between PAC and MTCE, contractual or otherwise. The relationship between the parties is necessary to determine the alleged degree of unreasonable preference, prejudice or disadvantage shown to PAC vs. MTCE (Count I), the claimed loss for each party as a result of Respondent’s alleged unreasonable regulations and how any contractual relationships may have been effected (Count II), and the effort put in by each party individually with respect to their alleged attempts to negotiate or deal with Respondent (Count III).

Complainants have, since the initiation of this matter, referred to themselves collectively as Ports America, in both the Complaint and with nearly identical statements throughout their responses to Respondent’s discovery requests. However, when the topic of damages arises, the responses diverge, with PAC alleging different business lost than MTCE in response to Respondent’s Interrogatory No. 10. Accordingly, the relationship between Complainants and their respective relationship with Respondent is nonprivileged, and relevant to Respondent’s defense in this matter.

Complainants' MTC Response:

Respondents' general statement is not specifically associated with any requests, but is believed to relate to Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11, above. Complainants respond by reference to their responses to Interrogatory No. 5, Request for Production No. 3, and Request for Admissions No. 10 & 11, above.

C. Details of PAC's and MTCE's Stevedoring Operations

Respondent seeks information from Complainants on its operations and which Ports America affiliate performs stevedoring operations at which terminal, the type of cargo handled, and which Ports America affiliate has been designated a sole or preferred stevedore provider in the past several years. Respondent sought this information through its Interrogatories Nos. 7 & 8, and its Request for Production No. 15.

[Complainants have refused to answer or given evasive or non-responsive answers to any question beyond the Port of Baltimore, and with respect to any type of cargo stevedoring that is not auto or ro/ro stevedoring. We consider the topic of Complainants' operations, the terminals they stevedore, their status as preferred or sole stevedore - including at Seagirt Terminal in Baltimore - to be incredibly relevant to the issue of whether Respondent's preferences and practices (Count I and II) are reasonable under the Shipping Act. Respondent attempted to identify additional persons who may have information relevant to the proceeding, however Complainants refused to identify any additional persons and have given evasive answers with respect to the roles and duties of the only two persons identified. This is further complicated by the vague answer with respect to Tim Beall's employment and/or role subsequent to June 2023.

The parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense. The information requested regarding the extent of Ports America's operations and the roles and duties of its personnel are calculated to lead to the discovery of admissible evidence and relevant to Respondent's defenses in this matter. Accordingly, the above topics are relevant and permissible topics under 46 CFR § 502.141(e), §502.145(a)(2), §502.146(a) and §502.147(a)(1).]⁹

Complainants' MTC Response:

It is AMPORTS' position that discovery of information (1) beyond the Port of Baltimore, (2) with respect to all types of cargo stevedoring beyond Ro/Ro stevedoring at issue in this proceeding, (3) as to entities other than Complainants, and (4) the terms and conditions of stevedoring at such

⁹ This general safety argument section appears on pages 17-18 of Respondent's Motion to Compel, at the end of the heading "Details of PAC's and MTCE's Stevedoring Operations" but is reprinted here for clarity.

other terminals, is relevant to establishing the “relevant market” and whether the alleged conduct had a “significant impact on competition” in such market. As addressed in the Motion to Dismiss briefing in this proceeding, these matters are simply not elements of the causes of action in this proceeding, nor defenses to the violations of the Shipping Act alleged in the Complaint, and therefore are not relevant subjects for discovery in this proceeding.

Despite bearing the burden to show relevance, in Respondent’s Motion to Compel Respondent says *less*, not more, on this issue than in the previous briefing. The extent of Respondent’s relevance arguments in the motion, in sum and substance, is the conclusory assertion that “[w]e consider the topic of Complainants’ operations, the terminals they stevedore, their status as preferred or sole stevedore - including at Seagirt Terminal in Baltimore - to be incredibly relevant to the issue of whether Respondent’s preferences and practices (Count I and II) are reasonable under the Shipping Act.” Motion at 16-17. Respondent does not explain why or how the information is “incredibly relevant,” nor if there is any basis other than the aforementioned market and competition theory, which is conspicuously not specifically articulated in Respondent’s Motion to Compel despite advancing it in the Motion to Dismiss and counsel’s presentation of the issue at the Status Conference.

Although the argument and authority Respondent relied upon in the Motion to Dismiss were distinguished because they did not address pleading requirements (Order at 9), Respondent’s cite to no authority that “relevant market” and “effect on competition” are applicable elements or defenses to the unreasonable and undue practices, or refusal to deal, causes of action in this proceeding. While Shipping Act complaints challenging an exclusive arrangements—monopolies traditionally considered *prima facie* unreasonable—by reference to anti-trust law concepts of relevant market and the effect of the respondent’s practices on competition in that market—the instant Complaint does not challenge whether AMPORTS violated the Shipping Act by entering into an agreement or

agreements, “exclusive” or otherwise, but rather its unreasonable and unequal treatment of allegedly “non-preferred” stevedores and associated Access Fees and other conditions. Those monopoly anti-trust considerations are simply not relevant in this proceeding, substantively, or for the purposes of discovery. *See Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, Docket No. 12-02, Doc. 31 at 11 (FMC, Dec. 18, 2015) (citing *Ceres Marine Terminal, Inc. v. Md. Port Admin.*, 27 S.R.R. 12751, 1270 (FMC 1997) (outlining the required elements of the cause of action). Nor have they been factors in other “access fee” proceedings. *See, e.g., Sylvia Robledo D/B/A 81st Dolphin Parking, v. The Board of Trustees of the Galveston Wharves*, Docket No. 14-06, at 11 (FMC June 2, 2022). In the *Galveston* proceeding, which the D.C. Court of Appeals ruled on appeal established a section 41106(2) violation with respect to undue treatment of terminal access fees, in remand proceedings the Commission even further ruled “that the amount involved or the revenue percentage is not a defense that negates or excuses the violation the section 41106(2) cause of action.” *Id.* at 11.

Respondent has failed to sustain their burden to establish relevance of discovery as to other terminals, non-party entities, of non-Ro/Ro stevedoring practices, and accordingly the requests below should be denied.

Interrogatory No. 7: “Identify all ports and terminals in North America at which any Ports America Affiliate, including Complainant, currently performs stevedoring operations; for each such port or terminal identifying: (1) the specific Ports America Affiliate(s) stevedoring provider at such port or terminal, (2) and the type of cargo which is loaded or unloaded at each listed terminal.”

[Complainants’] RESPONSE: “Complainant objects to Interrogatory No. 7 as overbroad, compound, unduly burdensome, duplicative of Interrogatory No. 9, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s interrogatory with respect to Complainant’s stevedoring operations in other terminals in North America outside of Baltimore, and Complainant’s non-RoRo stevedoring operations within the Port of Baltimore (e.g., container stevedoring and breakbulk stevedoring), are not permissible interrogatory subjects in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2). Subject to and without waiving any of the foregoing objections, with respect to Complainant’s RoRo stevedoring within the Port of Baltimore, Complainant refers Respondent to its response to Interrogatory No. 9.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent seeks information from Complainants on its operations and which Ports America affiliate performs stevedoring operations at which terminal, the type of cargo handled, and which Ports America affiliate has been designated a sole or preferred stevedore provider in the past several years. Respondent sought this information through its Interrogatories Nos. 7 & 8, and its Request for Production No. 15.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of, as addressed above, which is incorporated herein. In addition, Complainants responded to the Interrogatory to the extent not objectionable as to relevant terminals in Baltimore at which Complainants provide Ro/Ro stevedoring.

Interrogatory No. 8: “Identify all ports and terminals in North America at which any Ports America Affiliate, including Complainant, has been the sole or preferred stevedoring provider in the past five years; for each such port or terminal identifying: (1) the specific Ports America Affiliate(s) acting as sole or preferred stevedoring provider at such port or terminal, (2) the type of cargo which is loaded or unloaded at each listed terminal, and (3) the reasons or justifications why such Ports America Affiliate(s) acts as sole or preferred stevedoring provider at such port or terminal.”

[Complainants’] RESPONSE: “Complainant objects to Interrogatory No. 8 as overbroad, compound, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent’s interrogatory with respect to whether Complainant or any Affiliate of Complainant “has been the sole or preferred stevedoring provider” in “terminals in North America” is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2).”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent seeks information from Complainants on its operations and which Ports America affiliate performs stevedoring operations at which terminal, the type of cargo handled, and which Ports America affiliate has been designated a sole or preferred stevedore provider in the past several years. Respondent sought this information through its Interrogatories Nos. 7 & 8, and its Request for Production No. 15.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of, as addressed above, which is incorporated herein.

Request for Production No. 15: “Provide all Documents documenting, discussing, or concerning in any way the reasons or justifications why any Ports America Affiliate(s) acts as sole or preferred stevedoring provider at any port or terminal identified in response to Interrogatory No. 8.”

[Complainants'] RESPONSE: “Complainant objects to Request No. 15 as overbroad, unduly burdensome, exceeding the scope of relevant, discoverable information in this proceeding, and to the extent that it seeks information protected by attorney-client communication, workproduct, or other privilege.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent seeks information from Complainants on its operations and which Ports America affiliate performs stevedoring operations at which terminal, the type of cargo handled, and which Ports America affiliate has been designated a sole or preferred stevedore provider in the past several years. Respondent sought this information through its Interrogatories Nos. 7 & 8, and its Request for Production No. 15.”

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of, as addressed above, which is incorporated herein.

AMPORTS MTC ARGUMENT: Respondent sought information regarding Complainants' stevedoring contracts that it has with Ocean Carriers, and to identify the relevant terminals where those contracts are performed. Respondent sought this information through its Interrogatory No. 12.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Interrogatory No. 12: “Identify all current stevedoring contracts Complainant has with ocean carriers and the relevant terminals where those contracts are to be performed.”

[Complainants'] RESPONSE: “Complainant objects to Interrogatory No. 12 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding, to the extent the interrogatory seeks information with respect to Complainant's stevedoring contracts outside of the Port of Baltimore, and non-RoRo stevedoring contracts within the Port of Baltimore (e.g., container stevedoring and breakbulk stevedoring), and/or terminals not related to this proceeding, which are not permissible interrogatory subjects in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2). Subject to and without waiving any of the foregoing objections, Complainant responds that it will answer this Interrogatory by producing non-privileged documents kept in the normal course of business in its possession, custody, or control pertaining to the subject of the Interrogatory.”

AMPORTS MTC ARGUMENT: “Respondent sought information regarding Complainants' stevedoring contracts that it has with Ocean Carriers, and to identify the relevant terminals where those contracts are performed. Respondent sought this information through its Interrogatory No. 12.”

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of, as addressed above, which is incorporated herein. In addition, Complainants responded to the Document Request to the extent not objectionable and produced contracts with Ro/Ro ocean carriers pertaining to Complainants' Ro/Ro stevedoring at relevant terminals in Baltimore.

AMPORTS MTC ARGUMENT: Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Interrogatory No. 19: *"Identify all stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in the Port of Baltimore."*

[Complainants'] RESPONSE: *"Complainant objects to Interrogatory No. 19 as overbroad, unduly burdensome, and exceeding the scope of relevant, discoverable information in this proceeding. Respondent's interrogatory with respect to stevedoring companies performing stevedoring at Seagirt Terminal is not a permissible interrogatory subject in this proceeding pursuant to FMC Rules 141(e) and 145(a)(2)."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein.

Request for Admission No. 2: “Admit that Complainant performs stevedoring work at Seagirt Terminal in the Port of Baltimore.”

[Complainants’] RESPONSE: “Complainant objects to Request for Admission No. 2 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal in the Port of Baltimore.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein. In addition, Complainant provided a response to the Request for Admission to the extent not objectionable.

Request for Admission No. 3: “Admit that no stevedoring company that is not associated with Ports America is permitted to conduct stevedoring operations at Seagirt Terminal.”

[Complainants’] RESPONSE: “Complainant objects to Request for Admission No. 3 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by a company that is “not associated with Ports America.” To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal in the Port of Baltimore.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro

stevedoring, as addressed above, which is incorporated herein, and as to the objection that the request is vague and not capable of an admission or denial with respect to what is meant by a company that is “not associated with Ports America.” In addition, Complainant provided a response to the Request for Admission to the extent not objectionable.

Request for Admission No. 4: *“Admit that Complainant Ports America Chesapeake, LLC is the exclusive stevedore at Seagirt Terminal at the Port of Baltimore.”*

[Complainants’] RESPONSE: *“Complainant objects to Request for Admission No. 4 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal.”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein. In addition, Complainant provided a response to the Request for Admission to the extent not objectionable.

Request for Admission No. 5: *“Admit that a Ports America Affiliate is the exclusive stevedore at Seagirt Terminal at the Port of Baltimore.”*

[Complainants’] RESPONSE: *“Complainant objects to Request for Admission No. 5 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant does not perform RoRo stevedoring work at Seagirt Terminal (nor on the basis of its information and belief does an Affiliate of Complainant perform RoRo stevedoring work at Seagirt Terminal).”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information on the stevedoring companies permitted to perform stevedoring operations at Seagirt Terminal in Baltimore. Respondent sought this information through its Interrogatory No. 19, and its Request for Admissions Nos. 2, 3, 4, & 5.”*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein. In addition, Complainant provided a response to the Request or Admission to the extent not objectionable.

AMPORTS MTC ARGUMENT: Respondent sought confirmation that Complainants and/or Ports America affiliates operate as stevedores at no fewer than seven terminals. Respondent sought this information through its Request for Admissions Nos. 21 & 22.

Complainants' MTC Response:

Respondent's general argument regarding the referenced requests is reprinted and responded to in connection with each referenced request below.

Request for Admission No. 21: *"Admit that Complainants operate as stevedores at no fewer than 7 terminals in the Port of Baltimore."*

[Complainants'] RESPONSE: *"Complainant objects to Request for Admission No. 21 as vague, ambiguous, duplicative, and beyond the scope of a permissible request for admission in this proceeding pursuant to FMC Rule 502.147(a)(1) to the extent that it seeks admission or denial as to entities other than Complainant and as to stevedoring other than RoRo stevedoring. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds by reference to Complainant's response to Request for Admission No. 12."*

AMPORTS MTC ARGUMENT: *[no specific argument provided]* *"Respondent sought confirmation that Complainants and/or Ports America affiliates operate as stevedores at no fewer than seven terminals. Respondent sought this information through its Request for Admissions Nos. 21 & 22."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein. In addition, Complainant provided a response to the Request for Admission to the extent not objectionable, admitting that Complainants provided Ro/Ro stevedoring at six terminals in the Baltimore region: Atlantic, Chesapeake, Dundalk, Fairfield, South Locust Point, and Tradepoint.

Request for Admission No. 22: “Admit that Ports America Affiliates operate as stevedores at no fewer than 7 terminals in the Port of Baltimore.”

[Complainants’] RESPONSE: “Complainant objects to Request for Admission No. 22 as vague, ambiguous, duplicative of Request for Admission No. 21, and beyond the scope of a permissible request for admission in this proceeding pursuant to FMC Rule 502.147(a)(1) to the extent that it seeks admission or denial as to entities other than Complainant and as to stevedoring other than RoRo stevedoring. To the extent a response is required, and subject to and without waiver of the foregoing objections, Complainant responds by reference to Complainant’s response to Request for Admission No. 21.”

AMPORTS MTC ARGUMENT: [no specific argument provided] “Respondent sought confirmation that Complainants and/or Ports America affiliates operate as stevedores at no fewer than seven terminals. Respondent sought this information through its Request for Admissions Nos. 21 & 22.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of entities other than Complainants performing stevedoring other than Ro/Ro stevedoring, as addressed above, which is incorporated herein. In addition, Complainant provided a response to the Request for Admission to the extent not objectionable, admitting that Complainants provided Ro/Ro stevedoring at six terminals in the Baltimore region: Atlantic, Chesapeake, Dundalk, Fairfield, South Locust Point, and Tradepoint.

AMPORTS MTC ARGUMENT: “For context, Complainants limited their statements in response to Respondent’s Request for Admission 12 to six terminals at which it performs **ro/ro** stevedoring.

Respondent sought information regarding the persons and entities involved in Complainants’ stevedoring operations, any fact alleged in the Complaint and requested the subject matter of the information such person would possess or would be likely to possess. Respondent sought this information through its Interrogatory No. 2.”

Complainants’ MTC Response:

Respondent’s general argument regarding the referenced request is reprinted and responded to in connection with the referenced request below.

Interrogatory No. 2: “Identify all persons and entities that Complainant is aware have, or are likely to have, personal knowledge regarding Complainant’s stevedoring operations, any fact alleged in the complaint, including managers, and forepersons, and state the subject matter of the personal

knowledge possessed, or likely to be possessed, by each such person or entity.”

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No 2 as overbroad, unduly burdensome, duplicative, and requesting matters not capable of an interrogatory response by Complainant, to the extent it seeks the identification “all persons and entities” that are “likely to have []personal knowledge” with respect to the subject matter of the request. Subject to and without waiving any of the foregoing objections, Complainant responds by reference to the Initial Disclosures of Complainants, the Initial Disclosures of Respondent, and such other persons identified by the parties in discovery in this proceeding, including depositions, and in any pleadings and/or supplemental discovery responses in this proceeding.”*

AMPORTS MTC ARGUMENT: *[no specific argument provided] “Respondent sought information regarding the persons and entities involved in Complainants’ stevedoring operations, any fact alleged in the Complaint and requested the subject matter of the information such person would possess or would be likely to possess. Respondent sought this information through its Interrogatory No. 2.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection as to the scope of “all persons and entities” that are “likely to have []personal knowledge” with respect to the subject matter of the request. In addition, Complaints responded to the Interrogatory to the extent not objectionable to persons already identified in the proceeding, with reservation of the right to supplement and/or as to persons that may be identified in the course of depositions.

Interrogatory No. 23: *“Identify and describe in detail the role of Mark Schmidt regarding stevedoring operations at the Port of Baltimore for both Complainants.”*

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No. 23 as overbroad, and as exceeding the scope of relevant, discoverable information in this proceeding as to the Complainant and as to stevedoring operations other than RoRo operations at relevant terminals in the Port of Baltimore, which are in excess of what is required pursuant to FMC Rule 145. Subject to and without waiver of the foregoing objections, Complainant responds that Mark Schmidt is the General Manager and Vice President of Ports America Chesapeake, LLC and is responsible for stevedoring and terminal activities and for financial tracking for Ports America Chesapeake, LLC in Baltimore and is involved with other RoRo stevedoring and terminal activities in Baltimore generally with respect to matters relevant in this proceeding, including [sic] as to Marine Terminals Corporation- East.”*

AMPORTS MTC ARGUMENT: *“Respondent notes that the only two persons identified by Complainants’ Initial Disclosures were Mark Schmidt – Vice President and General Manager of Ports America Chesapeake, and Tim Beall – Operations Manager of ‘Ports America.’ Respondent sought further information on the roles and duties of the only two persons identified by Complainants as*

involved in its stevedoring operations at the Port of Baltimore. Respondent sought this information through its Interrogatory Nos. 23 & 24.”

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection as to relevance, as addressed above and incorporated herein. In addition, Complainants responded to the Interrogatory to the extent not objectionable by describing the role and responsibility of the requested individual.

Interrogatory No. 24: *“Identify and describe in detail the role of Tim Beall regarding stevedoring operations at the Port of Baltimore for both Complainants.”*

[Complainants’] RESPONSE: *“Complainant objects to Interrogatory No. 24 as overbroad, and as exceeding the scope of relevant, discoverable information in this proceeding as to the Complainant and as to stevedoring operations other than RoRo operations at terminals in the Port of Baltimore relevant to this proceeding, which are in excess of what is required pursuant to FMC Rule 145. Subject to and without waiver of the foregoing objections, Complainant responds that Tim Beall was the Operations Manager for Marine Terminals Corporation-East until June 2023, responsible for stevedoring and terminal activities for Marine Terminals Corporation-East in Baltimore and is involved with other RoRo stevedoring and terminal activities in Baltimore generally with respect to matters relevant in this proceeding, including as to Ports America Chesapeake, LLC.”*

AMPORTS MTC ARGUMENT: *“Respondent notes that the only two persons identified by Complainants’ Initial Disclosures were Mark Schmidt – Vice President and General Manager of Ports America Chesapeake, and Tim Beall – Operations Manager of ‘Ports America.’ Respondent sought further information on the roles and duties of the only two persons identified by Complainants as involved in its stevedoring operations at the Port of Baltimore. Respondent sought this information through its Interrogatory Nos. 23 & 24.”*

Complainants’ MTC Response:

Complainants reiterate their objections, including but not limited to the objection as to relevance, as addressed above and incorporated herein. In addition, Complainants responded to the Interrogatory to the extent not objectionable by describing the role and responsibility of the requested individual.

AMPORTS MTC ARGUMENT: Complainants have refused to answer or given evasive or non-responsive answers to any question beyond the Port of Baltimore, and with respect to any type of cargo stevedoring that is not auto or ro/ro stevedoring. We consider the topic of Complainants’ operations, the terminals they stevedore, their status as preferred or sole stevedore - including at

Seagirt Terminal in Baltimore - to be incredibly relevant to the issue of whether Respondent's preferences and practices (Count I and II) are reasonable under the Shipping Act. Respondent attempted to identify additional persons who may have information relevant to the proceeding, however Complainants refused to identify any additional persons and have given evasive answers with respect to the roles and duties of the only two persons identified. This is further complicated by the vague answer with respect to Tim Beall's employment and/or role subsequent to June 2023.

The parties are permitted to obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense. The information requested regarding the extent of Ports America's operations and the roles and duties of its personnel are calculated to lead to the discovery of admissible evidence and relevant to Respondent's defenses in this matter. Accordingly, the above topics are relevant and permissible topics under 46 CFR § 502.141(e), §502.145(a)(2), §502.146(a) and §502.147(a)(1).

Complainants' MTC Response:

Complainants responded to the foregoing statement above, which response is incorporated herein.

D. Efforts Undertaken by Complainants to Negotiate or Deal with Respondent

Respondent sought to narrow the issues in the present litigation with respect to Count III of the Complaint. Respondent attempted to do this by requesting Complainant identify all efforts made to negotiate with Respondent for designation as a preferred stevedore at Respondent's Baltimore Terminal (Respondent's Interrogatory No. 25), and by requesting confirmation that no safety or efficiency records had been sent by Complainants (Respondent's Requests for Admission Nos. 6 & 7).

[Complainants have refused to respond to the Requests for Admission, and have failed to provide a responsive answer identifying the efforts taken by Complainants to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore. The requested information is not privileged and relates to the factual interactions between the parties. These requests and interrogatory go towards the establishing the facts as they relate to Count III of the Complaint, specifically with respect to Respondent's defense that Complainants failed to pursue negotiations despite Respondent's invitation to do so, and are not beyond what is required by 46 C.F.R. §502.145. In addition, the Requests are by no means beyond the scope of permissible requests under §46 C.F.R. §502.147(a)(1), as they relate the facts surrounding the interactions between the parties and are capable of being admitted or denied by Complainants.]¹⁰

Complainants' MTC Response:

Respondent's general argument regarding the referenced request is reprinted and responded to in connection with the referenced request below.

¹⁰ This general Request for Admission argument section appears on page 20 of Respondent's Motion to Compel, at the end of the heading "Efforts Undertaken by Complainants to Negotiate or Deal with Respondent" but is reprinted here for clarity.

Interrogatory No. 25: *Identify and describe all efforts made by Complainant to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore.*

[Complainants'] RESPONSE: *"Complainant objects to Interrogatory No. 25 as overbroad, vague, ambiguous, premised on mischaracterizations of facts and circumstances not capable of an interrogatory response by Complainant, requesting information which is in excess of what is required pursuant to FMC Rule 145, and to the extent that it seeks information protected by attorney-client communication, work-product, or other privilege. Subject to and without waiver of the foregoing objections, Complainant responds by reference to the allegations in the Verified Complaint in this proceeding, including the allegations that Respondent did not contact Complainant concerning its alleged "competitive bidding process" at any time prior to the November 1, 2022 AMPORTS announcement. In addition, Complainant will further answer this Interrogatory by producing non-privileged documents kept in the normal course of business in its possession, custody, or control pertaining to the subject of the Interrogatory. Complainant further responds that it reserves the right to rely on Documents, Communications, information and other evidence produced and obtained in discovery in this proceeding, including depositions, and in any pleadings and/or supplemental discovery responses in this proceeding."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent sought to narrow the issues in the present litigation with respect to Count III of the Complaint. Respondent attempted to do this by requesting Complainant identify all efforts made to negotiate with Respondent for designation as a preferred stevedore at Respondent's Baltimore Terminal (Respondent's Interrogatory No. 25), and by requesting confirmation that no safety or efficiency records had been sent by Complainants (Respondent's Requests for Admission Nos. 6 & 7)."*

Complainants' MTC Response:

Complainants reiterate their objections, including but not limited to the objection that the Interrogatory is overbroad, vague, ambiguous, premised on mischaracterizations of facts and circumstances not capable of an interrogatory response by Complainant. In addition, Complainants responded to the Interrogatory to the extent not objectionable by responding that (1) Respondent did not contact Complainant concerning its alleged "competitive bidding process" at any time prior to the November 1, 2022 AMPORTS announcement, (2) responding by reference to production of documents kept in the normal course of business in its possession, custody, or control pertaining to the subject of the Interrogatory, (3) by further responding that it reserves the right to rely on Documents, Communications, information and other evidence produced and obtained in discovery in the proceeding, including depositions, and in any pleadings and/or supplemental discovery responses in this proceeding, and (4) Complainants further respond based on information and discovery to date that

Complainants engaged in efforts to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore by letter to AMPORTS counsel on behalf of Complainants on December 6, 2022, after first becoming aware of Respondent's preferred stevedore "competitive bidding process," despite the fact that Respondent had designated a preferred stevedore by that point, after which it is apparent in the record that Respondent had refused to deal with Complainants and indeed after that point still refused to deal as to the 2022 "competitive bidding process," e.g. in its March 31, 2023 response letter.

Request for Admission No. 6: *"Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant's safety records to Respondent or Respondent's counsel."*

[Complainants'] RESPONSE: *"Complainant objects to Request for Admission No. 6 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by "Complainant's safety records" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent sought to narrow the issues in the present litigation with respect to Count III of the Complaint. Respondent attempted to do this by requesting Complainant identify all efforts made to negotiate with Respondent for designation as a preferred stevedore at Respondent's Baltimore Terminal (Respondent's Interrogatory No. 25), and by requesting confirmation that no safety or efficiency records had been sent by Complainants (Respondent's Requests for Admission Nos. 6 & 7)."*

Complainants' MTC Response:

Respondent previously moved to compel Request for Admission No. 6 on page 9 of Respondent's Motion to Compel, to which Complainants responded above. Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. In addition, Complainants reiterate specifically the objection that the request for admission as vague and not capable of an admission or denial with respect to what is meant by "Complainant's safety records" and for failing to identify

whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. To the extent that Respondent's refer to sending "Complainant's safety records" in response to the March 31, 2023 letter from counsel regarding a *future* consideration or future process that has not been initiated, and which upon information and belief does not currently exist, the request is the request is admitted in that specific part, but denied in its generality.

Request for Admission No. 7: *"Admit that as of the date of the Complaint in this matter, June 2, 2023, Complainant or its counsel had not sent Complainant's efficiency records or metrics to Respondent or Respondent's counsel."*

[Complainants'] RESPONSE: *"Complainant objects to Request for Admission No. 7 as outside the scope of relevance in this proceeding and outside the scope of permissible requests for admission pursuant to FMC Rule 502.147(a)(1), and therefore Complainant is not required to admit or deny the request. Complainant also objects to the request as vague and not capable of an admission or denial with respect to what is meant by "Complainant's efficiency records or metrics" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send such records, or on what basis Complainant would have otherwise sent such records to Respondent. Complainant also objects to the request with respect to the references to counsel to the extent the request seeks admission of matters subject to attorney client, work product, or other legal privileges."*

AMPORTS MTC ARGUMENT: *[no specific argument provided] "Respondent sought to narrow the issues in the present litigation with respect to Count III of the Complaint. Respondent attempted to do this by requesting Complainant identify all efforts made to negotiate with Respondent for designation as a preferred stevedore at Respondent's Baltimore Terminal (Respondent's Interrogatory No. 25), and by requesting confirmation that no safety or efficiency records had been sent by Complainants (Respondent's Requests for Admission Nos. 6 & 7)."*

Complainants' MTC Response:

Respondent previously moved to compel Request for Admission No. 7 on page 9 of Respondent's Motion to Compel, to which Complainants responded above. Complainants reiterate their objections, including but not limited to the objection on the lack of relevance of safety-related information, as addressed above, which is incorporated herein. In addition, Complainants reiterate specifically the objection that the request for admission as vague and not capable of an admission or denial with respect to what is meant by "Complainant's efficiency records or metrics" and for failing to identify whether, and if so, when and by what means, Respondent requested that Complainant send

such records, or on what basis Complainant would have otherwise sent such records to Respondent. To the extent that Respondent's refer to sending "Complainant's efficiency records or metrics" in response to the March 31, 2023 letter from counsel regarding a *future* consideration or future process that has not been initiated, and which upon information and belief does not currently exist, the request is admitted in that specific part, but denied in its generality.

AMPORTS MTC ARGUMENT: Complainants have refused to respond to the Requests for Admission, and have failed to provide a responsive answer identifying the efforts taken by Complainants to negotiate with Respondent for designation as a preferred stevedore at Respondent's Atlantic or Chesapeake terminals in the Port of Baltimore. The requested information is not privileged and relates to the factual interactions between the parties. These requests and interrogatory go towards the establishing the facts as they relate to Count III of the Complaint, specifically with respect to Respondent's defense that Complainants failed to pursue negotiations despite Respondent's invitation to do so, and are not beyond what is required by 46 C.F.R. §502.145. In addition, the Requests are by no means beyond the scope of permissible requests under §46 C.F.R. §502.147(a)(1), as they relate the facts surrounding the interactions between the parties and are capable of being admitted or denied by Complainants.

Complainants' MTC Response:

Complainants responded to the foregoing statement above, which response is incorporated herein.

VI. AWAITING PRODUCTION

In addition to the issues outlined above, Complainants have advised through their discovery responses and counsel, that they will produce documents and responses on a range of items. No supplemental responses or documents have yet been received. This includes the following items:

- Persons that have knowledge of Complainants' stevedoring operations (Respondent's Interrogatory No. 2)
- Quantity of auto and ro/ro cargo broken down by month and terminal for 2019 through 2023 (Respondent's Request for Production No. 5; Interrogatory No. 9)
- Diagram of the corporate relationship between Complainants (Respondent's Request for Production No. 3)
- Documents and evidence of Complainants' alleged damages and alleged effect of Respondent's actions (Respondent's Request for Production No. 6; Interrogatory Nos. 10, 11, 12, & 13; Request for Production Nos. 11, 12, & 13)

Complainants' MTC Response:

Respondent is not moving to compel production of specific requests and therefore no

response should be required. To the extent that a response is required, only as to the second item, “Quantity of auto and ro/ro cargo broken down by month and terminal,” Complainants have agreed to cooperatively evaluate whether the volume information previously provided in discovery in a different format than indicated above is reasonably available, and if so, may be amenable to providing the information, but has not committed to doing so if the information is not reasonably available as requested. To the extent Complainants have further supplemental information on the remaining topics listed they may provide supplemental responses, without commitment to do so if not responsive or reasonably available.

VII. CONCLUSION

For the foregoing reasons, and pursuant to 46 CFR §502.69, and §502.150, Respondent APS East Coast, Inc. respectfully moves for an Order Compelling Compliance with its above outlined Discovery Requests and for the production of outstanding documents and answers and the granting all such other and further relief as may be just and proper.

Complainants’ MTC Response:

For the reasons set forth herein, Complainants respectfully request that Respondent’s Motion to Compel be Denied.

Dated: January 3, 2023

Respectfully Submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: January 3, 2024

Carrol Hand
/s/ Carrol Hand